

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

|                                       |   |                      |
|---------------------------------------|---|----------------------|
| -----                                 | X | INDEX NO. _____      |
|                                       | : | Date Purchased _____ |
| GERNARD NEWMAN,                       | : |                      |
|                                       | : |                      |
| Plaintiff,                            | : | <u>SUMMONS</u>       |
|                                       | : |                      |
| -against-                             | : | Plaintiff designates |
|                                       | : | Bronx County as the  |
|                                       | : | County of Occurrence |
| THE CITY OF NEW YORK, POLICE OFFICER  | : |                      |
| ELVIS DURAN, SHIELD NO. 21865, POLICE | : |                      |
| OFFICER FELIX BAEZ, SHIELD NO. 4759,  | : |                      |
|                                       | : |                      |
|                                       | : |                      |
| Defendants.                           | : |                      |
|                                       | : |                      |
| -----                                 | X |                      |

To the above named Defendants:

**You are hereby summoned** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the comp

Dated: Bronx, New York  
September 11, 2017

  
\_\_\_\_\_  
THE BAGLEY FIRM, P.C.  
Attorneys for Plaintiff  
903B Sheridan Avenue  
Bronx, New York 10451  
(718) 705-7999

Defendants' Addresses:  
The City of New York  
100 Church Street  
New York, NY 10007

Police Officer ELVIS DURAN, SHIEL NO. 21865  
One Police Plaza  
New York, NY 10038

Police Officer Felix Baez, Shield No.: 4759  
One Police Plaza  
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

|                                              |   |                                  |
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|                                              | : | Date Purchased                   |
| <b>GERNARD NEWMAN,</b>                       | : |                                  |
|                                              | : |                                  |
| Plaintiff,                                   | : | <b><u>VERIFIED COMPLAINT</u></b> |
|                                              | : |                                  |
| -against-                                    | : |                                  |
|                                              | : |                                  |
|                                              | : |                                  |
| <b>THE CITY OF NEW YORK, POLICE OFFICER</b>  | : |                                  |
| <b>ELVIS DURAN, SHIELD NO. 21865, POLICE</b> | : |                                  |
| <b>OFFICER FELIX BAEZ, SHIELD NO. 4759</b>   | : |                                  |
|                                              | : |                                  |
|                                              | : |                                  |
| Defendants.                                  | : |                                  |
|                                              | : |                                  |
| -----                                        | X |                                  |

Plaintiff, by his attorney, **THE BAGLEY FIRM, P.C.**,  
complaining of the Defendants, respectfully shows to this court  
and alleges the following upon information and belief:

**AS AND FOR A FIRST CAUSE OF ACTION**

**FIRST:** That at all times hereinafter mentioned, the  
Defendant, THE CITY OF NEW YORK, hereinafter referred to as "CITY,"  
was and still is a municipal corporation organized and existing  
under and by virtue of the laws of the State of New York.

**SECOND:** That at all times hereinafter mentioned to the  
Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, and  
POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759, was and is a police  
officer, employed by the Defendant "CITY."

**THIRD:** That on and prior to the 23<sup>rd</sup> day of October, 2015, the aforesaid DefendantS, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, and POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759 was employed by the Defendant the "CITY" and was assigned in the Borough of Bronx, New York City and State of New York.

**FOURTH:** That at all times hereinafter mentioned the Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, and POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759 was and still if a police officer, employed by the defendant "CITY."

**FIFTH:** That on or about the 23<sup>rd</sup> day of October, 2015, the Plaintiff, **GERNARD NEWMAN**, while lawfully walking in Crotona Park, Bronx, New York City and State of New York, was without just cause or provocation maliciously, intentionally and falsely accused by Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759 of appearing to be suspicious; that Defendants POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, and POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759 falsely arrested Plaintiff; that Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, and POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759 handcuffed Plaintiff in an unnecessary manner so as to cause pain; that Plaintiff suffered abuse for over four months before being released; that Plaintiff had to undergo criminal court appearance for approximately eight months before the charges were dismiss on June 14, 2016.

**SIXTH:** That on or about the 23<sup>rd</sup> day of October, 2015, Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, and POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759 in particular, and Defendants, their agents, servants and/or employees, without just cause or provocation, and with reckless and negligent disregard for the truth, and without investigation, placed Plaintiff, **GERNARD NEWMAN**, under arrest.

**SEVENTH:** That on or about 23<sup>rd</sup> day of October, 2015. The Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, and POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759, assaulted and battered Plaintiff; by pushing him to the ground and kicking him in the head; by tightly fastening handcuffs on his wrists so as to cause sharp pain; that Defendant's POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, and POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759 falsely imprisoned Plaintiff during this time for approximately four months.

**EIGHT:** That as a result of this false imprisonment, Plaintiff suffered physical discomfort and mental anguish, resulting in emotional and psychological injury in that he is traumatized and demoralized.

**NINTH:** That on or about the 23<sup>rd</sup> day of October, 2015, Plaintiff, **GERNARD NEWMAN**, without just cause or provocation, and without investigation, was placed under arrest by Defendants, their agents, servants and/or employees, and in particular, by



Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, and POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759.

**TENTH:** That on or about the 23<sup>rd</sup> day of October, 2015, and upon arresting the Plaintiff, **GERNARD NEWMAN**, and depriving him of his liberty, Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759 and cohorts took the Plaintiff to Central Booking in the County of Bronx and entered him on the records as under arrest for criminal possession of a weapon and criminal possession of a firearm.

**ELEVENTH:** That on or about the 23<sup>rd</sup> day of October, 2015, the Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759 and cohorts further caused Plaintiff, **GERNARD NEWMAN**, to be handcuffed, and to be held in Central Booking, Vernon C. Bain Correctional Center for approximately four months, to have his fingerprints taken in accordance with police procedures for the arrest of criminals on those charges at Central Booking located at 215 East 161<sup>st</sup> Street, Bronx, NY 10451.

**TWELFTH:** That on or about the 24<sup>rd</sup> day of October, 2015 a criminal complaint was issued by Defendants, their agents, servants and/or employees, and in particular, by Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, and POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759.

**THIRTEENTH:** That solely as a result of the aforesaid, the Plaintiff, **GERNARD NEWMAN's**, life was interfered with.

**FOURTEENTH:** That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff, **GERNARD NEWMAN**, was deprived of his liberty and was subject to physical injury and pain, scorn and ridicule, and was degraded in the esteem of the community.

**FIFTEENTH:** That on or about the 9<sup>th</sup> day of September, 2016, the Plaintiff caused the Notice of Claim, in writing, sworn to by and on behalf of the claimant, the Plaintiff herein, containing the statement of the name and place of residence of the claimant by the street and number and his attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the Defendant "CITY," their agents, servants and/or employees at the Law Department; this action was not commenced to recover upon or force claim until the expiration of 30 days or thereafter, and this action was commenced within the time allowed by law.

**SIXTEENTH:** That by reason of the foregoing, the Plaintiff has been damaged in the sum of TWO MILLON DOLLARS (\$2,000,000.00).

**AS AND FOR A SECOND CAUSE OF ACTION**

SEVENTEETH: Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "FIRST" through "SIXTEENTH" with the same force and effect as if fully set forth at length herein.

EIGHTEENTH: That at all times hereinafter mentioned, the aforesaid false arrest, assault, battery, false imprisonment and malicious prosecution was caused solely as a result of the negligence of the Defendants, their agents, servants and/or employees.

NINETEENTH: That by reason of the foregoing, the Plaintiff has been damaged in the sum of TWO MILLON DOLLARS (\$2,000,000.00).

AS AND FOR A THIRD CAUSE OF ACTION

TWENTIETH: Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "FIRST" though "NINETEENTH" with the same force and effect as if fully set forth at length herein.

TWENTY-FIRST: That on or about the 23<sup>rd</sup> day of October, 2015, and while in custody of the Defendants of the County of New York, New York, the Plaintiff, **GERNARD NEWMAN**, was injured, humiliated, and harshly handcuffed by the Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759, and cohorts acting whitin the scope of their employment and authority in such a manner as to knowingly cause injury to Plaintiff. That the Defendants, their agents, servants and



employees, acting as agents and on behalf of the Defendants, within the scope of their employment, and in particular Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, and POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759 willfully and maliciously assaulted and battered the Plaintiff, **GERNARD NEWMAN**, in that he has the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, **GERNARD NEWMAN**, and his act caused apprehension of such contact in the Plaintiff, and in a hostile and/or offensive manner touched the Plaintiff and cause such battery in and about his body and limbs. That on or about the 23<sup>rd</sup> day of October, 2015 and while in the custody of the Defendants of the County of New York, New York, the Plaintiff, **GERNARD NEWMAN**, was intentionally arrested without probable cause by Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759 and cohorts acting within the scope of their employment and authority in such a manner as to knowingly and unlawfully restrain Plaintiff and cause injury to Plaintiff. That on or about the 23<sup>rd</sup> day of October, 2015 and while in the custody of the Defendants of the County of New York, New York, the Plaintiff, **GERNARD NEWMAN**, was intentionally falsely imprisoned by the Defendant "CITY" acting within the scope of their employment and authority in such a manner as to restrain the

Plaintiff without justification and knowingly cause injury to Plaintiff.

**TWENTY-SECOND:** That by reason of the aforesaid intentional assault, battery, false arrest and false imprisonment committed by the Defendants, their agents, servant and employees, in particular Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, and POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759 acting within the scope of their employment and authority and without any probable or reasonable cause, the Plaintiff, **GERNARD NEWMAN**, suffered great injury in and about body and limbs; suffered from the stigma within the community; suffered conscious pain and suffering, both physical and psychological; and that Plaintiff was otherwise damaged.

**TWENTY-THIRD:** That as a result of the aforesaid assault, battery, false arrest and false imprisonment, the Plaintiff, **GERNARD NEWMAN**, was caused to sustain serious, severe, painful bodily injuries so that he was rendered sore.

**TWENTY-FOURTH:** That by reason of the foregoing, the Plaintiff has been damaged in the sum of TWO MILLON DOLLARS (\$2,000,000.00).

**AS AND FOR A FOURTH CAUSE OF ACTION**

**TWENTY-FIFTH:** Plaintiff repeats, reiterates and reallges each and every allegation contained in paragraphs numbered

"FIRST" through "TWENTY-FOURTH" with the same force and effect as if fully set fourth at length herein.

**TWENTY-SIXTH:** That the Defendants, their agents, servants and employees failed to adequately and properly train, supervise, discipline or in any other way control the behavior of their personnel and in particular Defendants POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, and POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759 and in their hiring practices in the exercise of their functions; in that they had a reckless lack of cautious regard for the rights of the public, including Plaintiff, and exhibited a lack of that degree of the due care which prudent and reasonable individuals would show in executing the duties of the Defendants.

**TWENTY-SEVENTH:** That the failure of the Defendants, their agents, servants and employees to adequately and properly train, supervise, discipline or in any other way control the behavior of their personnel in the exercise of their functions, was carried out willfully, wantonly, maliciously and with such reckless disregard for the danger of harm and injury to the public, including Plaintiff.

**TWENTY-EIGHTH:** Due to the acts of the Defendants, their agents, servant and employees herein, their failure to discipline and properly hire their employees and the continued

employment of said employees presents a clear and present danger to the citizens of the City of New York.

**TWENTY-NINETH:** That the Plaintiff, **GERNARD NEWMAN**, did not consent to the aforementioned conduct of the Defendants, their agents, servants, and employees or in any way contribute to said conduct.

**THIRTIETH:** That the injuries sustained by the Plaintiff, **GERNARD NEWMAN**, resulted from the negligence of the Defendants in employing and continuing to employ, without adequate training and supervision, employees of violent character, unsuitable temperament and insensitive disposition.

**THIRTY-FIRST:** That by reason of the foregoing, the Plaintiff has been damaged in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

**AS AND FOR A FIFTH CAUSE OF ACTION**

**THIRTY-SECOND:** Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "FIRST" through "THIRTY-FIRST" with the same force and effect as if fully set fourth at length herein.

**THIRTY-THIRD:** Defendants, who were acting in concert and within the scope of their authority, arrested and caused Plaintiff to be imprisoned without probable cause in violation of Plaintiff's rights to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United



States and to be free of a deprivation of liberty under the Fourteenth Amendment to the United States.

**THIRTY-FOURTH:** Defendant's intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement.

**THIRTY-FIFTH:** Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

**TWENTY-SIXTH:** That by reason of the foregoing, the Plaintiff has been damaged in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

**AS AND FOR SIXTH CAUSE OF ACTION**

**TWENTY-SEVENTH:** Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "FIRST" through "THIRTY-SIXTH" with the same force and effect as if fully set fourth at length herein.

**THIRTY-EIGHTH:** The use of excessive force by Defendants, POLICE OFFICER ELVIS DURAN, SHIELD NO. 21865, and POLICE OFFICER FELIX BAEZ, SHIELD NO. 4759 in handcuffing him tightly was an unreasonable physical seizure of Plaintiff in violation of his right under the Fourth Amendment to the United States Constitution.

**THIRTY-NINTH:** That by reason of the foregoing, the Plaintiff has been damaged in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

**WHEREFORE,** The plaintiff demands judgment against the defendants on the First Cause of Action in the sum of TWO MILLION DOLLARS (\$2,000,000.00), that the plaintiff demands judgment against the defendants on the Second Cause of Action in the sum of TWO MILLION DOLLARS (\$2,000,000.00), that the plaintiff demands judgment against the defendants in the Third Cause of Action in the sum of TWO MILLION DOLLARS (\$2,000,000.00), that the plaintiff demands judgment against the defendants on the Fourth Cause of Action in the sum of TWO MILLION DOLLARS (\$2,000,000.00), that the plaintiff demands judgment against the defendants in the Fifth Cause of Action in the sum of TWO MILLION DOLLARS (\$2,000,000.00), that the plaintiff demands judgment against the defendants in the Sixth Cause of Action in the sum of TWO MILLION DOLLARS (\$2,000,000.00), together with the costs and disbursements of this action.

Dated: Bronx, New York  
September 11, 2017

Yours, etc.



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**THE BAGLEY FIRM, P.C.**  
Nicolas Bagley, Esq.  
*Attorneys for Plaintiff*  
903B Sheridan Avenue  
Bronx, New York 10451  
(718) 705-7999

Attorney Verification

STATE OF NEW YORK  
COUNTY OF BRONX

NICOLAS BAGLEY, ESQ., affirms as follows:

I am an attorney at law admitted to practice in the Courts of the State of New York, and I am the attorney for the plaintiff in the within action, and as such, am familiar with all the facts and circumstances therein.

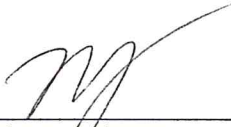
That the foregoing verified complaint is true to the knowledge of affirmant, except as to those matters therein stated to be alleged on information and belief, and as to those matters he believes it to be true.

Affirmant further states that the reason that this verification is made by affirmant and not by plaintiff, is that affirmant is not currently within Bronx county, where affirmant maintains his office.

Affirmant further states that the sources of his knowledge and information are reports of investigation, conversations, writings, memoranda and other data concerning the subject matter of the litigation.

The undersigned attorney affirms the foregoing statements are true, under the penalties of perjury and pursuant to rule 2106 CPLR.

Dated: Bronx, NY  
September 11, 2017

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Nicolas Bagley  
**The Bagley Firm, PC**  
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Bronx, NY 10451  
(718) 705-7999 (t)  
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